

maximum or minimum on the potential fee award.” (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. First, the fees were contingent on prevailing, and accordingly, some adjustment for the risk of loss is appropriate. As to preclusion of other employment, there may be some preclusion, but a total of about 203.7 hours, spread over just over two years, suggests that it was not substantial. Another consideration is the result obtained. It is certainly sufficient to warrant approval, but is not extraordinary. The issue is whether there is anything about this case that justifies a higher than usual fee. As noted previously, the case did not involve exceptional risk—this type of case nearly always settles. It is complex, but not especially novel, since the claims made here are common. The resolution after two years of litigation is not especially early. Counsel will be well-compensated for their work, and the possibility that an attorney’s fee could be reduced somewhat smaller multiplier in a given case would not discourage counsel from taking this type of case.

The Court awards fees of \$350,000 (which is 25% of the size of the fund), and which still constitutes an implied multiplier of 2.08.

The litigation costs are reasonable and are approved.

As to the requested representative payment of \$10,000, Ms. Senna attests that she participated in the litigation, took the risk of liability for costs, and that her participation could hurt her chances of being hired by other employers. She estimates his time spent at 35 hours. She also provided a general release, although she does not indicate that she had any other claims with value. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the request for a representative payment is approved but it is reduced to \$5,000. The difference shall be awarded to the class.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted, with the change in attorney’s fees and representative payment as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE
FILED BY: CLINTON, TAKENYA B.**

TENTATIVE RULING:

Plaintiff Takenya Clinton brings this Motion to Compel Further Responses to Plaintiff's Requests for Admission – Set One. On June 17, 2026, one day before filing its opposition to the Motion, Defendant The Permanente Medical Group (TPMG) filed supplemental responses.

Although the parties dispute the full impact of TPMG's supplemental responses, it does appear that the supplements have narrowed the dispute. The Court understands that any requests addressed in Plaintiff's opening brief that are not addressed (either specifically or by category) in Plaintiff's reply brief are no longer in dispute.

TPMG argues that the requests go beyond relevance to this case. Plaintiff seeks responses relating to positions she never applied to, which pre-date her disability. Plaintiff responds that the qualifications for positions she never applied for "are relevant to demonstrating a pattern of discriminatory treatment, to establishing what comparable positions existed within TPMG to which Plaintiff could have been reassigned, and to evaluating whether TPMG's stated reasons for not selecting Plaintiff – across a years-long period – are pretextual." The Court does not entirely follow this argument. Positions that were open prior to her disability, to which she did not apply, and which were then not open or available when she wanted or needed reassignment are not relevant to her accommodations claim unless they are substantially similar to positions that *were open or available* when she wanted or needed reassignment.

Request for Admission Nos. 4, 5

These Requests seek TPMG's admission that Plaintiff was qualified for these two pre-disability positions. Plaintiff points out inconsistencies between TPMG's briefing regarding its supplemental responses and its actual supplemental responses. TPMG's brief states that they supplemented their response to admit that Plaintiff *indicated on her application* that she met the qualifications for the positions and deny that she was more qualified. But its supplemental responses do not contain the admission – instead it states that she never applied so it cannot state whether she was qualified. The Court is confused as to how TPMG could ever have provided the response it states it is supplementing: If Plaintiff never applied for a position how could she have indicated in her application that she was qualified for such a position? The Court will not order further supplementing. Questions of qualifications for positions Plaintiff never applied for, if relevant to her claims, are better probed in deposition.

Request for Admission Nos. 20, 31

These Requests seek TPMG's admission that Plaintiff was required to "compete" for two positions for which she did apply. Plaintiff complains the collective bargaining agreement cannot be raised as a new reason for denial raised for the first time in a brief. It must be in the discovery response. In this context, the Court disagrees. In the context of Plaintiff's applications and this workplace, the Court

will not require supplemental responses.

Request for Admission No. 77

This Request seeks Defendant's admission that Plaintiff was not considered for a specific Staff Nurse II – Emergency Department role. TPMG's initial response admitted that she applied after the application period. The supplemental response is a straight denial. Plaintiff, without citation states, "A party may not serve a supplemental response that withdraws a prior admission without explanation." Plaintiff requests that TPMG either explain the denial or restore the admission. The Court, however, sees the two responses as the same. TPMG's original "admission" was not an admission of the requested fact, and the denial is substantively similar. The Court will not order any supplemental response.

Qualified admissions

Plaintiff argues that TPMG's answers to Request Nos. 41, 42, 46, 50, 51, 55, 59, 60, 64, 68, 69, 73 fail to answer the Request properly. TPMG notes that its answers provide explanation. Both parties are correct. TPMG must amend to actually admit or deny the question as phrased. Further context can be added either in the Requests or through other forms of discovery.

Timing

All amended responses ordered by the Court must be provided within 30 calendar days of this order.

Sanctions

Plaintiff requests \$4,785 in sanctions. Defendant argues that the supplemental responses mooted the motion. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." After a thorough analysis of the original requests, the supplemental responses (and the timing of those responses), and both parties' arguments, and the scope of the meet and confer process, the Court will order \$500 in sanctions for this Motion, payable within 30 calendar days of this order.

6. 9:00 AM CASE NUMBER: C23-02891
CASE NAME: TAKENYA CLINTON VS. THE PERMANENTE MEDICAL GROUP
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S FORM**
INTERROGATORIES, SET ONE
FILED BY: CLINTON, TAKENYA B.
TENTATIVE RULING:

Plaintiff Takenya Clinton brings this Motion to Compel Further Responses to Plaintiff's Form Interrogatories – Set One. On June 17, 2026, one day before filing its opposition to the Motion, Defendant The Permanente Medical Group (TPMG) filed supplemental responses.

Although the parties dispute the full impact of TPMG's supplemental responses, it does appear that the supplements have narrowed the dispute. The Court understands that any requests addressed in